

TENTATIVE RULINGS
Judge Lindsey E. Martínez, Dept. C24

“Civility is not about etiquette. This is not a matter of bad manners. Incivility slows things down, it costs people money – money they were counting on their lawyers to help them save. And it contravenes the Legislature’s directive that ‘all parties shall cooperate in bringing the action to trial[.]’ (Code Civ. Proc., § 583.130.)” (*Masimo Corp. v. The Vanderpool Law Firm, Inc.* (2024) 101 Cal. App. 5th 902, 911; *see generally* OCBA Civility Guidelines.)

- The court encourages remote appearances to save time and reduce costs.
- All hearings are open to the public.
- You must provide your own court reporter and interpreter, if required.
- Call the other side and ask if they will submit to the tentative ruling. If everyone submits, call the clerk. The tentative ruling will become the order. If anyone does not submit, there is no need to call the clerk.
- The court will hold a hearing. The court may rule differently at the hearing. (*See Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

Hearing Date: June 1, 2026 at 1:30 pm

Rulings Posted: 5/29/26 at 3 pm

#	Case Name	Tentative
301	<i>Martin vs. In-N-Out Burgers</i>	The Motion for Leave to File First Amended Answer to Plaintiffs’ Complaint, filed on 2/20/26 by defendant In-N-Out Burger (INO) is GRANTED. The Motion complies with C.R.C. 3.1324, and is unopposed. INO’s Request for Judicial Notice (ROA 327), is GRANTED under Evidence Code §452(d), as to the existence of those records. INO is to file and serve its First Amended Answer no later than 6/10/26 and give notice of this ruling.